



## MEMORANDUM FOR RECORD

**SUBJECT:** Use of a Single Source below the Simplified Acquisition Threshold (SAT)

### I. BACKGROUND

A. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

B. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

### II. DESCRIPTION OF THE SUPPLIES/SERVICES REQUIRED

*The driving simulator installation has been identified as a requirement for the 1 Sim-Tech T680 and 1 TM Crane simulator that 90 CONS PK purchased for Malmstrom AFB, located in building 1439 rm 115F. The contractor shall provide the delivery, equipment, and personnel for moving the simulator from one location to another. The vendor will install the required item and provide training on the use of the software.*

*The initiator or requestor for this requirement is from the 373d Training Squadron Air Education and Training Command (AETC) Francis E. Warren AFB, Wyoming.*

### III. RATIONALE FOR SOLICITING FROM A SINGLE SOURCE OR BRAND NAME (select all that apply):

☒ A. ONLY ONE RESPONSIBLE SOURCE (select all that apply):

☐ 1. RESTRICTIVE RIGHTS

The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

☒ 2. EXCLUSIVE LICENSING AGREEMENTS

The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

*The current 1 Sim-Tech T680 and 1 TM Crane simulator at Malmstrom Air Force Base is manufactured by Sim-Tech, operating under the company name Excel Driver Services, LLC. This company holds proprietary rights for all Sim-Tech parts and systems, including the installation required for the operation of the item. Though other companies sell a driving simulator and might be able to install the software, the Government is risking that the installation will turn out differently than it is supposed to. Excel Driver Services, which owns the Sim-Tech product, is the one that designed the simulator that Malmstrom has, and going with another company might result in additional training costs as having the same software as Minot and F.E. Warren AFB will result in better training for the militaries that will undergo the training, as the instructors for the three bases will be able to communicate on the how-to of the software. Added to this, Excel Driver Services advises the mission partner that the company will not honor the warranty maintenance period that comes with the driver simulators and that if Excel is the one that will install, it will be easier to address the issue that may happen during and after the installation.*

☐ 3. BRAND NAME

Item required must be a brand name product, or feature of a product, particular to one manufacturer.

☐ 4. OTHER REASONS



☐ B. UNUSUAL AND COMPELLING URGENCY.

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

- 1. Date on which the requirement was first identified.
- 2. Required delivery date/period of performance.
- 3. Explanation of why delivery/commencement of services by the date mentioned above is required:

N/A

- 4. If appropriate, include any additional pertinent information.

**IV. CONTRACTING OFFICER'S DETERMINATION**

I have determined, in accordance with FAR 13.106-1(b)(1), that the circumstances of this contract action deem only a single source is reasonably available.

Refer to [FAR 5.102\(a\)\(6\)](#) for the requirement to post the brand-name justification or documentation.

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| <b>Typed Name and Rank/Grade of Contracting Officer</b><br>Flight Chief<br>George A. Strand<br>341 CONS/731-4677<br>george.strand@us.af.mil | <b>Signature of Contracting Officer</b><br><br>STRAND.GEORGE.A<br>LLAN.1163161970<br><br>Digitally signed by<br>STRAND.GEORGE.ALLAN.116316<br>1970<br>Date: 2025.02.28 14:11:23 -07'00' |
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